

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
KANSAS CITY, KANSAS**

MARK KRISTOPHER SIMON,

Plaintiff,

V.

LARRY SCOTT, JR.
31035 Spring Valley Road
Paola, Kansas 66071

Defendant.

Case No.:

JURY TRIAL DEMANDED

COMPLAINT

COMES NOW Plaintiff, by and through his counsel, Randall L. Rhodes, and with his *Complaint for damages against Defendant*, states as follows:

1. This is a civil action seeking money damages by Plaintiff of more than seventy-five thousand (\$75,000.00) dollars against Defendant pursuant to Kansas Law as a result of negligence committed by Defendant in Miami County, Kansas.

2. This court has jurisdiction pursuant to 28 U.S.C. section 1332.

PARTIES

3. Plaintiff Mark Kristopher Simon (hereinafter referred to as Plaintiff) is a citizen of the state of Missouri.

4. Defendant Larry Scott Jr., (hereinafter referred to as Defendant) is a citizen of the state of Kansas, specifically 31035 Spring Valley Road, Paola, Kansas 66071.

BACKGROUND/FACTS COMMON TO CALL COUNTS

5. On 07/19/2016, Plaintiff went to Paola, Kansas to examine and potentially

purchase an off-road vehicle (hereinafter referred to as a “dune buggy.”)

6. In the course of examining the dune buggy, Defendant offered to give Plaintiff a test drive.

7. While test driving the dune buggy, with Plaintiff as a passenger, Defendant allowed the dune buggy to overturn.

COUNT I – NEGLIGENCE

8. Plaintiff incorporates by this reference each and every allegation in Background/Facts to all Counts of this Complaint as it fully set forth here in *haec verba*.

9. Defendant owed a duty to Plaintiff and breached that duty when he allowed the dune buggy to overturn.

10. Defendant breached his duty to Plaintiff and was negligent in one or more of the following ways:

- (a) drove at an excessive speed;
- (b) failed to maintain a careful lookout;
- (c) and failed to operate the dune buggy in a safe and reasonable manner.

11. Defendant’s negligence was the proximate cause of Plaintiff’s injuries, which include the following:

- (a) injury to his right leg;
- (b) injury to his right knee;
- (c) injury to his right arm;
- (d) and injury to his left leg.

12. As a result of Defendant’s negligence, Plaintiff has suffered lost wages, past and future medical, mental anguish, and pain and suffering.

WHEREFORE, Plaintiff asks for judgement against Defendant for an amount that is fair and reasonable for attorney fees and costs and for such other relief as the court deems just or proper under the circumstances.

ROUSE FRETS GENTILE RHODES, LLC

/s/ Randall L. Rhodes

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